

**Placer County Superior Court
10820 Justice Center Drive, Roseville**

**PROBATE CALENDAR NOTES
July 27, 2026, 8:30 AM, Department 2
101 Maple Street, Auburn**

**Published July 22, 2026, 10:30 PM
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NOTICE: CHANGE OF CALENDAR DEPARTMENT AND DATES

Beginning July 6, 2026, the Probate Calendar will be heard Mondays, 8:30 a.m., in Department 2, located at the Historic Courthouse, 101 Maple Street, Auburn.

These calendar notes are provided pursuant to Local Rule 80.1.4 for the probate calendar set for hearing **July 27, 2026, 8:30 AM, in Department 2**, the Hon. Glenn M. Holley, presiding.

Pursuant to Local Rule 80.1.4, these calendar notes are not a tentative ruling on the merits of any matter before the court. Remote appearances are generally available for this calendar, as provided in the Local Rules. Local Rule 10.24(G), governing remote appearances for most probate, conservatorship, and guardianship cases applies to this calendar.

Updated notes may be posted at any time and will generally be updated prior to the hearing. Staff may respond to limited questions concerning calendar notes; however, court staff may not give legal advice to parties or attorneys. Messages may be left for the Office of Legal Research at (916) 408-6119.

1. S-PR-0010758 Cowan, Barbara Sue; In Re the Estate of

Court determination is needed as to the reasonableness of requested attorney fees. The distributive share of post-deceased child Melissa Ortiz passes as though she had survived and should distribute to personal representative of her estate, if any. Prob.C. §§ 11801(a) & 11802(a). The petition does not show that successors of Melissa Ortiz have

invoked any procedure under Prob.C. § 13000 et seq. to claim direct distribution of the share of Melissa Ortiz. See Prob.C. § 11802(c).

In the even the court determines the share of Melissa Ortiz should be paid to her successors, administrator should show my distributions for Gillianna Ortiz, Indigo Ortiz, and Amber Ortiz should not be distributed to guardian of their estates, rather than to a CUTMA custodian.

2. S-PR-0011178 In Re the Estate of Kripp, June Lorraine

Missing proof of service of notice and motion to be relieved as counsel of record.

3. S-PR-0011237 In Re the Rudolfo A Gonzalez & Silvia A Gonzalez 2014 Trust

Missing timely service of notice of hearing for amended petition. Amended petition requires complete re-noticing. C.R.C. 7.53. Notices filed July 24 show only 3 days' service.

4. S-PR-0012179 In Re the Estate of Ciabattari, Murelene June

Missing timely notice of hearing. Notice as filed and served relates only to a July 24, 2026, hearing which the court rescheduled. Notice for July 27 was served July 23.

5. S-PR-0012287 In Re the Lois H Anderson Liv Trust

Petition to determine invalidity of trust restatement and trust and for other relief

Appearance is required for continued hearing on amended petition to determine invalidity of trust restatement and trust and for other relief.

Request to be relieved from mediation order

Appearance is required for hearing on request to be relieved from mediation order.

6. S-PR-0012746 In Re the Estate of Mitchell, Jennifer Ann

Court determination is needed: The requested distribution is contrary to the law of intestacy which requires distribution of the estate 1/2 each to surviving spouse and child. Prob.C. §§ 6401(c)(2)(A) & 6402(a). Petitioner requests contrary distribution pursuant to a premarital agreement. Petitioner's response to calendar notes does not include any citation to authority establishing that the agreement, which decedent may have breached, is the equivalent of a will and displaces the law of intestacy. If petitioner has a claim for

breach of the marital settlement agreement either against the estate or, in equity, against other heir(s) of decedent, an appropriate action may be required to determine such a claim.

7. S-PR-0012975 In Re the Gina Patricia Delaca Trust

Amended petition to recover trust property, compel account, re breach of trust, for instructions, for double damages

Appearance is required for continued hearing on amended petition to recover trust property and for other relief.

Current status, including status of trustee account, is needed.

Motion to compel further responses to requests for production of documents

Appearance is required for compliance hearing re motion to compel further responses to requests for production of documents.

Current status is needed.

Motion to compel further form interrogatory responses

Appearance is required for compliance hearing on motion to compel further form interrogatory responses.

Current status is needed.

Motion to compel further responses to requests for admission

Appearance is required for compliance hearing on motion to compel further responses to requests for admission.

Current status is needed.

8. S-PR-0013084 In Re the Estate of Reid, Colleen Jeanette

Court determination is needed as to requested \$50,000 reserve. Petitioner offers no explanation for the high amount requested.

9. S-PR-0013181 In Re the Rogers Liv Trust

Appearance is required for continued hearing on petition to determine invalidity of trust and trust amendment, and for other relief.

Current status, including status of mediation, is needed.

As provided in calendar notes for all prior hearings, it is recommended any claim for title to Arizona real property be denied as unsupported by law.

10. S-PR-0013262 In Re the Andrea Salazar Irrev Trust

Appearance is required for trial confirming conference / trial readiness conference. Current status is needed.

11. S-PR-0013274 In Re the Estate of Hahn, Charles J

Petition for final distribution is recommended for approval as prayed.

12. S-PR-0013407 In Re the Virginia Franklin Liv Trust

Petition to approve settlement agreement is recommended for approval as prayed.

13. S-PR-0013472 In Re the Estate of Tait, Michael Boyd

Reserved hearing for petition for final distribution is to be dropped from calendar. No petition has been filed.

14. S-PR-0013487 In Re the Estate of McCreery, Kristofer

Appearance is required for hearing on motion to compel further RPD responses. Because this matter is scheduled on the probate calendar, no tentative ruling is provided. Local Rule 80.1.4.

15. S-PR-0013833 In Re the Yellow Dog Trust

Appearance is required for hearing on petition to suspend and remove trustee, to compel trustee account, and for other relief.

16. S-PR-0013914 In Re the Estate of Beckham, Kelvin Dale

Missing sufficient notice of hearing for amended petition to administer estate. The notices filed May 27 is for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing any notice for the rescheduled July 27 date. Missing publication of notice for amended petition. Amended petition requires complete re-noticing (C.R.C. 7.53); notice must refer to "the complete title of the pleading to which the notice relates"—that is, to the amended petition. C.R.C. 7.50.

Additionally, the May 27 notice again refers to "Kelvin 'Kelly' 'Gab' Beckham," a name which is not used in the petition.

Revised allegations needed: petitioner identifies himself as a sibling of decedent and that decedent was survived by 6 siblings (see ¶ 8), but also that decedent was not survived by siblings. ¶ 6f alleges there are no issue of parents of decedent (¶ 6b) or issue of grandparents of decedent (¶ 6d). Siblings are issue of both parents and grandparents.

17. S-PR-0014093 In Re the Jerry Joan Oukrop Liv Trust

Appearance is required for hearing on petition to determine trust property.

Missing 30 days' personal service of notice of hearing with copy of the petition to US Bank. Prob.C. § 851(a)(2).

Missing verification to petition. Prob.C. § 1021.

It is recommended the petition be denied, as follows.

Petitioner does not allege facts bringing the claim within *Estate of Heggstad* (1993) 16 Cal.App.4th 943 because the account is not identified any way in the trust or any trust exhibit.

Petitioner does not allege facts showing that the IRA was either an asset of the 2014 trust or was payable on death to the trustee of the 2014 trust. The bank account statement does not identify the 2014 trustee as owner. Petitioner's prior counsel's communication appears to clarify the bank's position that the account has a pay-on-death designation in favor of a 2007 trust, which counsel argued did not exist. Counsel accordingly argued the bank should accept a small estate affidavit by the trustee of the 2014 trust. This is not a Prob.C. § 13105(b) petition to compel the bank to release the account pursuant to the affidavit.

Although a pourover will can be the basis for a small estate affidavit, it is insufficient for Prob.C. § 850 relief. The pourover will has no effect until probated and, when probated, requires estate administration. "In the absence of any transfer to [a] trust *prior* to [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280-281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

18. S-PR-0014099 In Re the Rosemary Lewings 2022 Trust

Missing sufficient notice of hearing for petition to determine trust property. The notice previously filed and served is for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing any notice for the rescheduled July 27 date.

It is recommended the petition to determine trust property be denied, as follows:

Relief is not available under *Estate of Heggstad* (1993) 16 Cal.App.4th 943 because the properties are not identified in the trust or any trust exhibit.

Relief is not available under *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156 depends. In *Ukkestad*, the court determined that an all-real-property funding clause can satisfy the statute of frauds to create a trust in real property not identified in the writing but which can be defined by extrinsic evidence such as real property records. *Id.* at 162–163. Petitioner admits in the petition that there is no funding clause of any kind in the trust or any other document.

The pourover will has no effect until probated and, when probated, requires estate administration. "In the absence of any transfer to [a] trust *prior* to [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280–281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

19. S-PR-0014100 In Re the Estate of Quintanar, Phillip Jesus

Missing sufficient notice of hearing for petition to administer estate. The notices previously filed, served, and published, are for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing any notice for the rescheduled July 27 date.

Missing required required allegations at ¶ 5a(3)–(4) (RDP), (7)–(8) (issue of predeceased child(ren)), & 5a(b) (step- or foster child(ren)).

20. S-PR-0014101 In Re the Greene Fam 1997 Trust

Petition to terminate exemption subtrust share is recommended for approval as prayed.

21. S-PR-0014102 In Re the Johnson Fam 2012 Rev Trust

Petition to modify irrevocable trust is recommended for approval as prayed.

22. S-PR-0014103 In Re the Estate of Nunes, Darlene Marie

Missing required allegations at ¶ 6 of the petition. The response to calendar notes addressed only the ¶ 7 issue.

23. S-PR-0014106 In Re the Annette M Sunde Supplemental Needs Trust

Appearance is required for hearing on trust petition.

It is recommended the trustee 1st / final account be approved.

It is recommended the request to confirm trusteeship of Foster be approved in part. The trust grants power to the trustee of the Carol A Gage & James W Gage Rev Living Trust to name a successor trustee of the SNT share. The power to name a successor SNT trustee cannot be limited to the time of Carol Gage's death as an executor cannot be appointed until after death and appointment could occur a significant period time—even years—after death. Nothing in the trust language limits the power of an executor or of the trustee to act to the time at or very soon after settlor's death. However, neither does the trust language empower the trustee to remove SNT successor trustees at will (or even for cause). As Kinsman has stated an intention to resign, it is recommended the court find that Fielding, as trustee of the Carol A Gage & James W Gage Rev Living Trust, has power to name a successor.

It is recommended the request to modify the trust be denied under Prob.C. § 17202.

Confirmation of Foster as trustee, however, cannot include waiver of bond. Foster is required to be bonded. See Prob.C. § 15602(a)(3). Petitioner offers nothing which constitutes "compelling circumstances" to excuse the requirement for trustee bond. Prob.C. § 15602(b).

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the parties and the court to prepare for the hearing.

24. S-PR-0014108 In Re the Stevens Fam Trust

Appearance is required for hearing on petition to compel trustee account.

25. S-PR-0014110 In Re the Estate of Bayes, Peter

Missing sufficient publication of notice of hearing. The notice as published was for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing published notice of hearing for the July 27 date.

Court determination is needed as to petitioner's request both to waive bond and for nominal bond of \$20,000.

26. S-PR-0014111 In Re the Estate of Simonis, Brinlee Kara Renee

Missing sufficient notice of hearing for petition to administer estate. The notices previously filed, served, and published, are for a July 24 hearing that was rescheduled by the court. Petitioner was notified of the revised court date by an order filed June 2. Missing any notice for the rescheduled July 27 date. Additionally, all notices, as filed and published, fail to refer to the amended petition. Amended petition requires complete re-noticing (C.R.C. 7.53); notice must refer to "the complete title of the pleading to which the notice relates" (C.R.C. 7.50).

Missing legal or factual basis for waiver of bond. Petitioner's allegations concerning the nature of decedent's estate do not constitute a factual basis for waiver of bond. Missing waiver of bond by Logan Simonis.

27. S-PR-0014117 In Re the Estate of Clyde, Timothy Scott

It is recommended the court consolidate this matter with S-PR-0014231, *Estate of Clyde*, and S-PR-0014251, *Estate of Clyde*. This case number, S-PR-0014117, should be the lead case and all future filings should be filed using only that number. C.R.C. 3.350(b).

It is further recommended all matters as a consolidated proceeding be set for hearing October 26, 2026.

For this proceeding by petitioner Nikkollette Clyde, the following additional calendar notes are provided:

Missing sufficient notice of hearing. Notice as filed, served, and published relates only to a July 24, 2026, hearing which the court rescheduled. Petitioner was notified of the revised court date by an order filed June 2. Missing any notice for the rescheduled July 27 date.

Missing sufficient notice of hearing for amended petition. Amended petition requires complete re-noticing, including new publication. C.R.C. 7.53. Notice, service, and publication for amended hearing are needed.

Missing required allegations at §§ 5a(3)–(4) (RDP), 5a(7)–(8) (issue of predeceased child(ren)), and 5a(b) (step- or foster child(ren)).

Missing verification to objections by Eric Sparks. Prob.C. § 1021.